

		acts and omissions to the same extent as private persons. (Gov't Code, § 820, subd. (a).) However, public agencies and organizations are "liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would . . . have given rise to a cause of action against that employee," unless "the employee is immune from liability." (Gov't Code, § 815.2; see <i>Zelig v. County of Los Angeles</i> (2002) 27 Cal.4th 1112, 1128 ["Vicarious liability is a primary basis for liability on the part of a public entity, and flows from the responsibility of such an entity for the acts of its employees under the principle of respondeat superior."].) Here, Defendant County of Orange's liability arises if its employees, the Deputy Defendants, only to the extent that the Deputy Defendants are liable and their improper actions were taken within the scope of their employment. There is no argument that the conduct at issue here was taken within the scope of Deputy Defendants' employment with Defendant County of Orange. Thus, because summary adjudication cannot be granted as to the individual Deputy Defendants as to the 1st through 6th and 8th Causes of Action, summary adjudication cannot be granted as to the Defendant County of Orange as to the claims. However, because the court has granted summary adjudication to the Deputy Defendants as to the 7th Cause of Action, the court must grant summary adjudication to Defendant County of Orange as to the 7th Cause of Action. Plaintiff shall give notice of this ruling.
10	Sentinel Restaurant and Hospitality Group, LLC vs. My OC Villas, LLC 30-2020-01176078	<u>ADR Review Hearing</u> In light of the court's orders regarding Defendant Amy Hsiao's Motion to Dismiss for Failure to Bring to Trial and the flings presented by the parties regarding the status of the arbitration proceedings, the court takes this matter OFF CALENDAR.

		<u>Motion to Dismiss</u> Defendant Amy Hsiao’s Motion to Dismiss for Failure to Bring to Trial is GRANTED. The First Amended Complaint in its entirety is DISMISSED without prejudice. Defendant Amy Hsiao (Defendant Hsiao) moves to dismiss this action due to Plaintiffs Sentinel Restaurant and Hospitality Group, LLC’s and Sentinel Restaurant Group-Hendrix, LLC’s failure to prosecute. <u>Dismissal for Failure to Prosecute</u> Civil Procedure Code section 583.310 states that “[a]n action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) Civil Procedure Code section 583.360 mandates that “[a]n action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article.” (Code Civ. Proc., § 583.360, subd. (a).) Defendant Hsiao cites to Sections 583.310 and 583.360. However, this action was filed on Decemebr 23, 2020. (See ROA #1.) Thus, less than 3 years have passed since the filing of this action and dismissal is not permitted under Sections 583.301 and 583.360. However, Defendant Hsiao also relies upon Civil Procedure Code section 583.410. That provision provides that “[t]he court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (Code Civ. Proc., § 583.410, subd. (a).) Thus, “sections 583.410 and 583.420 grant trial courts discretion to dismiss an action for failure to bring it to trial within two years.” (<i>Seto v. Szeto</i> (2022) 86 Cal.App.5th 76, 101.) This is confirmed by California Rules of Court Rule 3.1340, which states that “[t]he court on its own motion or on motion of the defendant may dismiss an action under Code of Civil Procedure sections 583.410-583.430 for delay in prosecution if the action has not been brought to trial or conditionally settled
--	--	--

		within two years after the action was commenced against the defendant.” (Cal. Rules of Ct. Rule 3.1340(a).) On June 2, 2021, the court signed the parties’ proposed Order Re: Joint Stipulation for Arbitration and to Stay Action. (See ROA #49.) On March 27, 2023, the arbitrator dismissed all of Plaintiffs’ claims in arbitration for failure to prosecute. (Decl. of Charles M. Farano in Supp. of Mot. to Dismiss, Exh. B at p. 4.) The arbitrator noted that despite be in in arbtiration since July 2021, by March 2023, Plaintiffs were without lead counsel and not prepared to oppose Defendants’ motion to dismiss in arbitration or to proceed with the arbitraiton hearing. (<i>Id.</i> at pp. 2-3.) The arbitrator thus dismissed the claims in arbitration for failure to prosecute pursuant Civil Procedure Code section 583.410 and California Rules of Court rule 3.1340. (<i>Id.</i> at pp. 3-4.) Plaintiffs have also failed to prosecute this action in this court. Plaintiffs’ counsel have filed a Motion to Be Relieved As Counsel because “[t]here has been a breakdown in communications between the clients and the attorneys, and the clients’ conduct has made it unreasonably difficult for the attorneys to effectively carry out the remainder of this representation.” (ROA #86, #88.) (fn.1) (fn.1) The court was constrained to deny this motion only because this action was stayed at the time. The court has since lifted the stay in light of the arbitrator’s dismissal of the claims in arbitration. (See ROA #106.) Further, Plaintiffs have not filed an opposition to this motion and have waived arguments against dismissal. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) <u>Dismissal to Confirm Arbitrator’s Decision</u>
--	--	---

		In addition, the Court of Appeal has held that an arbitrator's decision to dismiss claims in arbitration pursuant to Civil Procedure Code section 583 for failure to bring an action to trial within 5 years was the equivalent of an award in defendant's favor that was binding on the Superior Court. (See <i>Young v. Ross-Loos Medical Group, Inc.</i> (1982) 135 Cal.App.3d 669, 672-673.) Thus, such an award by the arbitrator had to be enforced by the Superior Court by dismissing the underlying civil action in accordance with Section 583, unless there was a basis for vacating the award. (See <i>id.</i> at pp. 673-674; see also <i>Burgess v. Kaiser Foundation Hospitals</i> (1993) 16 Cal.App.4th 1077, 1081-1082 [same with respect to Civil Procedure Code section 583.310].) The court can discern no basis for differentiating between an arbitrator's dismissal pursuant to Civil Procedure Code sections 583.310 and 583.410. Both are dismissals based upon statutory provisions for plaintiff's delay in bringing the matter to trial. In addition, Plaintiffs have presented no basis to vacate the arbitrator's award. The court therefore must enforce that award by dismissing all of Plaintiffs' claims, as the arbitrator did. Defendant Hsiao shall give notice of this ruling.
11	Stein vs. LAD Mission Viejo-JLR, Inc. 30-2023-01300906	<u>Motion to Compel Discovery</u> Plaintiff Jennifer Stein's Motion to Compel Further Responses to Request for Production Set One from Defendant Jaguar Land Rover North America, LLC is GRANTED in part and DENIED in part. Defendant Jaguar Land Rover North America, LLC is ORDERED to serve verifications to its responses to Plaintiff Jennifer Stein's Request for Production Set One within 30 days of service of the notice of ruling. Defendant Jaguar Land Rover North America, LLC is ORDERED to serve full, complete, and verified responses to Plaintiff Jennifer Stein's Request for Production Set One, Requests Numbers 33-40 and all responsive documents to Requests Numbers 33-40 within 30 days of service of the notice of ruling.